

1 SUPREME COURT OF THE STATE OF NEW YORK.  
 2 COUNTY OF QUEENS

3 - - - - -x

4 BENJAMIN SAKHAI,

5 Plaintiff,

6 Index No: 707005/2021

7 -against-

8 DELKAP MANAGEMENT, INC., ALEXANDER  
 9 WOLF & COMPANY, INC., M&R COOP LLC, M&R  
 10 CP LP, THE PORT WASHINGTON APARTMENT  
 11 CORP., W.E. BONNIE CONTRACTING, INC.  
 D/B/A ISLAND SNOW SERVICES, ISLAND SNOW  
 SERVICES,

12 Defendants.

13 - - - - -x

14 December 8, 2025  
 15 2:15 p.m. (EST)

16  
 17 Examination Before Trial of  
 18 Benjamin Sakhai, taken by Defendant,  
 19 pursuant to Notice, held via Zoom  
 20 videoconference, before Garry J. Torres, a  
 21 Stenographer, and Notary Public of the  
 22 State of New York.

23  
 24 \* \* \*

1   A P P E A R A N C E S:

2

3           ^FIRM  
4           Attorneys for Plaintiff  
5           ^ADDRESS  
6           ^ADDRESS

7       BY:   ^ATTORNEY, ESQ.

8

9           ^FIRM  
10          Attorneys for Defendant  
11          ^ADDRESS  
12          ^ADDRESS

13       BY:   ^ATTORNEY, ESQ.

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16       ALSO PRESENT:

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1                               STIPULATIONS

2           IT IS HEREBY STIPULATED, by and  
3 between the attorneys for the respective  
4 parties hereto, that:

5           All rights provided by the C.P.L.R.,  
6 and Part 221 of the Uniform Rules for the  
7 Conduct of Depositions, including the  
8 right to object to any question, except as  
9 to form, or to move to strike any  
10 testimony at this examination is reserved;  
11 and in addition, the failure to object to  
12 any question or to move to strike any  
13 testimony at this examination shall not be  
14 a bar or waiver to make such motion at and  
15 is reserved to, the trial of this action.

16          This deposition may be sworn to by the  
17 witness being examined before a Notary  
18 Public other than the Notary Public before  
19 whom this examination was begun but the  
20 failure to do so or to return the original  
21 of this deposition to counsel, shall not  
22 be deemed a waiver of the rights provided  
23 by Rule 3116, C.P.L.R. and shall be  
24 controlled thereby.

25                               The filing of the original of

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1     this deposition is waived.

2                   IT IS FURTHER STIPULATED, a copy  
3     of this examination shall be furnished to  
4     the attorney for the witness being  
5     examined without charge.

6                                 \*           \*           \*

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1 Q. Good afternoon Mr. Sakhai. Can you hear me?

2 A. Yes. dd d d ss

3 Q. My name is John Anello, and I'm an attorney with the law firm of  
4 Callahan & Fusco, and I represent Island Snow Services with respect  
5 to an accident I understand you were involved with back on February  
6 4th, 2021. We're here to take your deposition today, which I think you  
7 know what it is is a question-and-answer session about the accident,  
8 your alleged injuries, and your treatment for those injuries. I'm  
9 going to give you some instructions, and then I'm going to ask you  
10 some questions about those topics, and I just ask that you answer  
11 those questions to the best of your ability. You were just sworn in  
12 by the court reporter, and we're conducting this matter virtually,  
13 and we're in different locations, but you still have to tell the  
14 truth as though you were in a courtroom in front of a judge. The  
15 court reporter is taking down everything we say, so please make sure  
16 all your answers are clear and verbal no uh-huhs, shoulder shrugs, or  
17 hand gestures. Also, please let me finish my question before you  
18 answer, and I'll do the same for you; I'll allow you to complete your  
19 answer before I ask the next question. It's very important that only  
20 one person be speaking at a time. If I ask you a question and you  
21 answer it, I'm going to assume that you understood the question. If I  
22 ask a question and you don't know the answer, please don't guess.  
23 It's perfectly all right to say you don't know. However, if the  
24 question calls for an estimate or an approximation, please just tell  
25 me that that's what you're doing before you provide your answer. Your

1 attorney is here with you today, and there are other attorneys that  
2 represent other parties as well, and you may hear one of them object  
3 to one of my questions. If he objects to one of my questions, please  
4 let that attorney state the reason for the objection and then wait  
5 for instructions from your attorney before answering. Finally, if you  
6 have to stand up, take a break·whatever you need to do·just let me know.  
7 There's no reason for you to feel uncomfortable, so if you need a  
8 break, it's fine. I don't expect this deposition to be very long. The  
9 only thing I ask is that if there's a question pending, please answer  
10 it before we take a break. Do you understand all of those  
11 instructions?

12 A. Yes.

13 Q. Do you have any questions?

14 A. I don't.

15 Q. Have you ever been deposed before?

16 A. Yes.

17 Q. And when was that?

18 A. I think I remember the exact date.

19 Q. Was it relative to this action, this case?

20 A. Yes.

21 Q. Aside from this case, have you ever been deposed before?

22 A. No.

23 Q. Are you currently under the influence of any substances or  
24 medications that would affect your ability to recall the accident,  
25 your injuries, or your treatment?

1 A. No.

2 Q. Is there any reason you can't be truthful with me here today?

3 A. No.

4 Q. Have you reviewed any documents in preparation for this  
5 deposition?

6 A. No.

7 Q. Have you reviewed any photographs in preparation for this  
8 deposition?

9 A. I did look at photographs.

10 Q. What photographs did you look at?

11 A. The accident photographs.

12 Q. And when you say the accident photographs, what were these  
13 photographs of?

14 A. Me on the ground and the parking lot.

15 Q. And who took these photographs, if you know?

16 A. I took the picture. I took some pictures and, I believe, my wife did.

17 Q. Do you have these photographs? Are they in your possession?

18 A. I believe we have provided them before.

19 Q. Aside from your attorney, and don't tell me any conversations you  
20 had with your attorney, have you discussed this case with anyone else  
21 in preparation for your deposition?

22 A. No.

23 Q. What's your date of birth? And we'll just put the year on the  
24 record.

25 A. 1984. (Objection: MR. TAIWO: Thank you.)

1 Q. How old are you?

2 A. 41.

3 Q. And at the time of the accident, how old were you?

4 A. 37.

5 Q. And what's your current address?

6 A. 7 North Plandome Road.

7 Q. Is that in Port Washington?

8 A. Port Washington, New York 11050.

9 Q. How long have you lived at that address?

10 A. Just over four years now.

11 Q. And your address, is that home a one-family, a two-family home, or  
12 something else?

13 A. It's a one-family.

14 Q. Do you own it, rent it, or something else?

15 A. Own it.

16 Q. Did you live at that property on February 4, 2021?

17 A. No.

18 Q. Where did you live on February 4, 2021?

19 A. I lived at 125 Main Street, Apartment 10, Port Washington, New  
20 York.

21 Q. And on February 4, 2021, how long were you living at that address?

22 A. We had moved in October 2018.

23 Q. And you say we. Who did you live with at that time?

24 A. My girlfriend who became my wife.

25 Q. And what is her name?



- 1 A. Nelly.
- 2 Q. What's her last name?
- 3 A. Sakhai.
- 4 Q. Do you still live with your wife, I'm assuming?
- 5 A. Yes.
- 6 Q. Do you live with anyone else?
- 7 A. My kids.
- 8 Q. How many -- how many children do you have?
- 9 A. Two kids.
- 10 Q. Are they minors?
- 11 A. Yes.
- 12 Q. What are their names, and can we just put initials on the record?
- 13 A. M. and
- 14 A.
- 15 Q. How old is M.?
- 16 A. M. is a little over three years old now, and
- 17 A. is a little over one year old.
- 18 Q. Have you ever gone by any other names or aliases?
- 19 A. No.
- 20 Q. Where were you born?
- 21 A. I was born in New York.
- 22 Q. And you're a United States citizen?
- 23 A. Yes.
- 24 Q. What's your Social Security number, and we'll just put x's on the
- 25 record?

- 1 A. XXX-XX-XXXX. (Objection: MR. TAIWO: Thank you.)
- 2 Q. Sorry, that was XX?
- 3 A. XX.
- 4 Q. XX, okay. And, again, just x's on the record. How long have you
- 5 been married to Melody?
- 6 A. A little over five years now.
- 7 Q. Prior to your marriage to Melody, were you ever married before?
- 8 A. No.
- 9 Q. What's your highest level of education?
- 10 A. I went to college.
- 11 Q. What college?
- 12 A. New York University.
- 13 Q. Did you graduate?
- 14 A. Yes.
- 15 Q. What year?
- 16 A. 2006.
- 17 Q. And what is your degree in?
- 18 A. Economics.
- 19 Q. And aside from NYU, did you go to any other secondary school or
- 20 graduate school?
- 21 A. No.
- 22 Q. Have you gone to any trade schools?
- 23 A. No.
- 24 Q. Do you have a professional license? By that, I mean, are you a
- 25 licensed stockbroker, plumber, or anything like that?

- 1 A. No.
- 2 Q. Do you currently have a driver's license?
- 3 A. Yes.
- 4 Q. In what state?
- 5 A. New York.
- 6 Q. And when did you first obtain a driver's license?
- 7 A. I believe I was 17.
- 8 Q. Has your driver's license ever been suspended or revoked?
- 9 A. Not that I recall. (Objection: MR. TAIWO: Objection, but you can
- 10 answer.)
- 11 Q. Were you employed at the time of the accident?
- 12 A. Self-employed.
- 13 Q. What was your job?
- 14 A. So I was both a salesperson for Destiny \*\*\* SPELLING REQUESTED \*\*\*
- 15 International Realty, not as a W-2, as a 1099 there, and I have my
- 16 own businesses.
- 17 Q. What kind of businesses do you have?
- 18 A. Consulting and real estate.
- 19 Q. What type of consulting work do you do?
- 20 A. Various industries.
- 21 Q. And is it commercial, residential, or something else?
- 22 A. I don't understand the question.
- 23 Q. Like, what type of industries? You said real estate; is it, like,
- 24 commercial real estate you deal with, or something else?
- 25 A. Both commercial and residential.

- 1 Q. Okay. And what was your job title at Destiny International?
- 2 A. Salesperson.
- 3 Q. And who was your supervisor?
- 4 A. Grace lay sack \*\*\* SPELLING REQUESTED \*\*\*.
- 5 Q. And what was your annual salary at the time of the accident?
- 6 A. It wasn't a salaried position.
- 7 Q. Approximately how much did you make weekly at that position at
- 8 Destiny International?
- 9 A. I don't know.
- 10 Q. Did you file a workers' compensation claim as a result of the
- 11 accident that gave rise to this lawsuit?
- 12 A. No.
- 13 Q. Are you currently employed today?
- 14 A. Self-employed.
- 15 Q. With the same positions you just described?
- 16 A. I'm not currently with Destiny International Agency.
- 17 Q. Okay. What do you do currently?
- 18 A. I just do consulting.
- 19 Q. And you work for yourself /\*ES?
- 20 A. Yeah.
- 21 Q. Have you ever served in the military?
- 22 A. No.
- 23 Q. Have you ever been convicted of a crime?
- 24 A. No.
- 25 Q. Aside from this lawsuit, have you ever been involved in a personal

1 injury lawsuit before?

2 A. No.

3 Q. Have you ever been involved in any other type of accident aside  
4 from the one that gave rise to this lawsuit where you injured your  
5 right arm?

6 A. No.

7 Q. Ever been involved in a motor vehicle accident where you injured  
8 your right arm?

9 A. No.

10 Q. Ever been involved in any other type of accident where you  
11 suffered injuries to the same part of your body that you're alleging  
12 you were injured in this lawsuit?

13 A. No.

14 Q. What was the date of the accident that gave rise to this lawsuit?

15 A. February 4, 2021.

16 Q. And do you remember what day of the week that was?

17 A. Thursday.

18 Q. And about what time of day did the accident happen?

19 A. About 5:30.

20 Q. In the afternoon?

21 A. Yeah.

22 Q. Where did the accident happen?

23 A. In the parking lot.

24 Q. In the parking lot of --

25 A. The parking lot behind 125 Main Street.

- 1 Q. This is where you were living at that time?
- 2 A. Correct.
- 3 Q. Okay. And where specifically did you fall? Was it in the parking
- 4 lot, the street, or somewhere else?
- 5 A. In the parking lot.
- 6 Q. Was anyone with you?
- 7 A. My wife was with me.
- 8 Q. Anyone else?
- 9 A. No.
- 10 Q. Where were you going?
- 11 A. I was taking my wife to a doctor's appointment.
- 12 Q. And had the accident not occurred, where were you -- where were
- 13 you planning on going?
- 14 A. To the doctor's appointment.
- 15 Q. Were you using your phone at the time of the accident?
- 16 A. No.
- 17 Q. Did you have a phone at the time of the accident?
- 18 A. In my pocket.
- 19 Q. Was it a cell phone, a Galaxy \*\*\* SPELLING REQUESTED \*\*\*, or
- 20 something else? An iPhone, I mean, a --
- 21 A. iPhone.
- 22 Q. It was an iPhone. And you'd been in this area before, I'm
- 23 assuming, since you lived there?
- 24 A. Yes.
- 25 Q. Were you walking to your car or someplace else?

1 A. I don't think I understand the question. Can you repeat --

2 Q. At the time you fell, were you walking to your car or were you  
3 going to catch a bus or something else?

4 A. Yes, walking to the car.

5 Q. What kind of car did you have at the time?

6 A. X5 BMW.

7 Q. And your wife's doctor, where was it located?

8 A. I believe in Manhasset. I'm not sure. I don't recall exactly.

9 Q. Had you gone out at all earlier that day?

10 A. No.

11 Q. What time did you wake up on the morning of February 4, 2021?

12 A. I don't recall.

13 Q. Did you have breakfast that morning?

14 A. I don't recall.

15 Q. Did you have lunch?

16 A. I don't recall.

17 Q. Did you have dinner?

18 A. I don't believe so.

19 Q. What did you do prior to leaving your house?

20 A. I was working. (Objection: MR. TAIWO: Objection but he can  
21 answer.)

22 Q. Approximately how long had you been working before you left your  
23 house?

24 A. It's an estimate, like, eight hours.

25 Q. What time did you go to bed on February 3, 2021?

1 A. I don't recall.

2 Q. Did you excuse me any alcohol in the 24 hours before the accident?

3 A. No.

4 Q. Did you consume any drugs or intoxicants, including marijuana or  
5 THC products, in the 24 hours before the accident?

6 A. No.

7 Q. Did you take any prescription medications on the date of the  
8 accident?

9 A. No.

10 Q. Did you forget or fail to take any prescription medications you  
11 were supposed to take on the date of the accident?

12 A. No.

13 Q. On the date of the accident, did you have any dizziness?

14 A. No.

15 Q. Any difficulty walking?

16 A. No.

17 Q. Any balance problems?

18 A. No.

19 Q. Any vision problems?

20 A. No.

21 Q. Any problems with arthritis in your legs or knees?

22 A. No.

23 Q. I see that you're wearing glasses. Did you have to wear glasses at  
24 the time of the accident?

25 A. Yes.



1 Q. Were you in fact wearing them at the time of the accident?

2 A. Yes.

3 Q. And what are those glasses for?

4 A. For vision.

5 Q. Do they help you improve your·can you·can you not see far, can you not  
6 see close? Do you have some other issue?

7 A. It's for distance.

8 Q. What was the weather like on the date of the accident?

9 A. It was cold.

10 Q. Was there any precipitation, rain, snow?

11 A. No.

12 Q. Do you know if it had rained or snowed the day before?

13 A. I believe it was two days beforehand. It had snowed two days  
14 beforehand.

15 Q. I'm sorry. It had snowed two days beforehand and three days  
16 beforehand?

17 A. I believe it was two or three days beforehand that it snowed. Was  
18 there any accumulation on the ground?

19 Q. Sure. At the time of the accident, was there any snow accumulation  
20 that you noticed on the ground?

21 A. Yes.

22 Q. How much approximately?

23 A. I don't know.

24 Q. And exactly how did you fall? Did you slip, trip, or something  
25 else?

- 1 A. I slipped.
- 2 Q. Okay. Which foot slipped?
- 3 A. My right foot.
- 4 Q. And did you fall backwards, forward, or something else?
- 5 A. My legs went up in the air. I fell backwards.
- 6 Q. Did your body turn or twist?
- 7 A. No.
- 8 Q. What part of your body hit the ground first?
- 9 A. My right hand.
- 10 Q. And what part of your body hit the ground second?
- 11 A. Just my body.
- 12 Q. Okay. Did any other parts of your body hit the ground?
- 13 A. I was on the ground afterwards.
- 14 Q. Did you recall any other parts of your body specifically hitting
- 15 the ground?
- 16 A. I guess my feet, my legs.
- 17 Q. In what position did you land?
- 18 A. Kind of like a seated position, almost.
- 19 Q. Did you hit your head?
- 20 A. I did not, luckily.
- 21 Q. Did you lose consciousness at all?
- 22 A. No.
- 23 Q. What caused you to fall?
- 24 A. I slipped on black ice.
- 25 Q. Did you observe the ground where you fell?

1 A. Can you repeat the question?

2 Q. Sure. After you fell, were you able to observe the ground on which  
3 you fell? 26

4 A. Yes. I was sitting on it.

5 Q. And what did you observe on the ground?

6 A. It was icy.

7 Q. Was there anything else?

8 A. I don't know --

9 Q. Was there any salt or sodium chloride on the ground to your  
10 knowledge?

11 A. Nothing.

12 Q. Did you notice this black ice before you fell?

13 A. No.

14 Q. Did you notice black ice anywhere else in the parking lot before  
15 you fell?

16 A. No.

17 Q. Did you notice black ice in the parking lot on the days prior to  
18 your fall? You said it snowed a few days before.

19 A. No. I didn't go out.

20 Q. Okay. This time that you went out to take your wife to the doctor,  
21 when was the last time you went out before that? 27

22 A. I don't recall.

23 Q. Offfell what happened?

24 A. What do you mean? (Objection: MR. TAIWO: Objection, but he can  
25 answer.)

1 Q. Sure. Your wife was with you?

2 A. My wife was with me, yes.

3 Q. Did she say anything to you?

4 A. I think I said to her that I broke my arm; I needed her to call  
5 911.

6 Q. Aside from your wife, did anyone see you fall?

7 A. No.

8 Q. Did anyone come to your aid?

9 A. The tenants came, and the 28 ambulance came.

10 Q. Aside from them, did anyone else come immediately after the  
11 accident?

12 A. Come to help me? Is that the.

13 Q. Yes.

14 A. No.

15 Q. Do you know if anyone other than your wife saw you fall?

16 A. I don't know if anybody saw me fall besides my wife.

17 Q. Did you take any pictures after you fell?

18 A. Did I take any pictures?

19 Q. Yes.

20 A. No.

21 Q. Did your wife take any pictures?

22 A. Yes.

23 Q. What did she take pictures of?

24 A. Me·me after I had fallen onto the floor, in agonizing pain, sitting  
25 there waiting for the ambulance.

1 Q. Did you take pictures of anyone else?

2 A. I don't know.

3 Q. Do you know if anyone else took 29 any pictures of you or the  
4 accident scene?

5 A. I don't know.

6 Q. Were you able to get back up after you fell?

7 A. No.

8 Q. Did you ever·I mean, obviously, you got back up·but did you require  
9 any assistance in getting up?

10 A. There was·there was ice to the point where the lieutenant almost  
11 slipped and fell also. The EMS person that had come almost slipped  
12 onto me when the lieutenant screamed at him and told him to get down  
13 on his hands and knees and crawl to me with the board. There was no  
14 chance that I could get up. And they put me onto the board and put me  
15 into the ambulance.

16 Q. So the EMTs·so you didn't get up until the EMTs put you onto the  
17 board and put you into the ambulance?

18 A. I did not get up after I had fallen. I did not get up. The EMS put  
19 me onto a board, with the lieutenant and whoever else was there; they  
20 put me into the ambulance.

21 Q. It was dark out, correct?

22 A. I think it was just getting dark.

23 Q. All right. So was the sun still up or was it totally dark?

24 A. It was·I don't recall exactly.

25 Q. Were there any streetlights or anything in the area?

1 A. Yes. I can't see the street from the back of the parking lot, from  
2 behind.

3 Q. Were there any lights in the back of the parking lot, anything  
4 that helped illuminate the area?

5 A. There are lights there. They were not on.

6 Q. Prior to the accident, had you ever made any complaints to the  
7 building or anyone associated with the building about snow or ice in  
8 the parking lot?

9 A. No.

10 Q. Did you ever make any complaints about snow or ice anywhere else  
11 on the facility?

12 A. No.

13 Q. Are you aware of any prior accidents involving snow or ice in that  
14 parking lot in particular?

15 A. No.

16 Q. What were you wearing on the date of the accident?

17 A. What was the question?

18 Q. What were you wearing on the date of the accident? Did you have a  
19 jacket on?

20 A. It was cold. I had jeans, a jacket, and snow boots.

21 Q. What kind of what kind of snow boots were they?

22 A. The brand? Is that what you're asking?

23 Q. Yes, sure. The brand?

24 A. I believe it's Columbia.

25 Q. Were they actually snow boots or work boots or something else?

1 A. Snow boots.

2 Q. Do you still have those snow boots?

3 A. Yes.

4 Q. When did you purchase those snow boots, if you recall?

5 A. I don't recall.

6 Q. Were you carrying anything at the time of the accident?

7 A. No.

8 Q. Did any part of your body come into contact with anything other

9 than the ground as a result of this slip?

10 A. Can you repeat the question?

11 Q. Sure. Did your -- did any part of your body, as a result of this

12 slip, come into contact with anything else besides the ground, a car,

13 anything else?

14 A. No.

15 Q. Did you feel pain immediately after the impact?

16 A. Yes. A ton of pain, and I was sitting there waiting for the

17 ambulance. I asked my wife for water because I just needed to have

18 some water. I was in shock.

19 Q. Where did you feel this pain?

20 A. In my arm.

21 Q. In your right arm?

22 A. My right arm.

23 Q. Did you feel pain anywhere else?

24 A. No.

25 Q. If you had to describe this pain in your right arm on a scale from

1 1 to 10, ten being the worst, one being the best, how would you  
2 describe it?

3 A. Ten. From the elbow to the shoulder was a complete ten.

4 Q. Were you bleeding from anywhere in your body after the impact?

5 A. No.

6 Q. Was there any swelling anywhere on your body after the -- after  
7 the fall?

8 A. I don't recall.

9 Q. Did you have any other visual injuries immediately after the  
10 impact anywhere else on your body?

11 A. Can you explain the question again? (Objection: MR. TAIWO:  
12 Objection. He can answer if he understands.)

13 Q. Sure. Aside from your right arm, which you described, did you have  
14 any other visual injuries, bleeding, bruising, swelling anywhere else  
15 on your body?

16 A. I was wearing a jacket. You couldn't even see my arm that it was  
17 injured.

18 Q. Were you aware of any other -- any other injuries to any other  
19 parts of your body immediately after the fall?

20 A. No.

21 Q. You said an ambulance arrived. Who called the ambulance?

22 A. My wife called 911.

23 Q. And approximately how long did it take for 911 to arrive after she  
24 called?

25 A. I believe the lieutenant showed up within five minutes or so.



- 1 Q. And what police department did that lieutenant belong to?
- 2 A. I believe Port Washington. 35
- 3 Q. And how long after that did the ambulance arrive?
- 4 A. A couple of minutes.
- 5 Q. So, from the time of the call until the time the ambulance
- 6 arrived, about ten minutes went by; is that fair to say?
- 7 A. It's probably a good estimate.
- 8 Q. Approximately how long were you on the ground after you fell?
- 9 A. Approximately ten minutes that I was waiting.
- 10 Q. Did you speak to the EMTs when they arrived?
- 11 A. Sorry?
- 12 Q. Okay. What did you say to them?
- 13 A. I told them I slipped and fell, and I believe I broke my arm.
- 14 Q. And what did they what did they say to you?
- 15 A. They told me they were going to take me to the hospital. 36
- 16 Q. Did they treat you at the scene for anything?
- 17 A. I don't recall.
- 18 Q. Did they treat you in the ambulance for anything?
- 19 A. I don't recall.
- 20 Q. What hospital did they take you to?
- 21 A. Northwell in Manhasset.
- 22 Q. Did you ask to go to that hospital, or was that just the hospital
- 23 they took you to?
- 24 A. I don't recall.
- 25 Q. How long did it take for them to get you to the hospital?

1 A. As an estimate, maybe five minutes or so.

2 Q. Other than the EMTs, did anyone else ride in the ambulance with  
3 you?

4 A. No one else was allowed in the ambulance because of COVID at the  
5 time.

6 Q. Did you report your slip and fall to any property managers or  
7 owners of the building?

8 A. I believe that we had looked for the contact information for the  
9 building manager, and the super had come out. He had seen me, and we  
10 told the owner of the unit. 37

11 Q. Who is the super?

12 A. Super is jack.

13 Q. Do you know Jack's last name?

14 A. I don't.

15 Q. How long after you fell did Jack come out?

16 A. I don't know.

17 Q. What did he say to you?

18 A. I don't recall.

19 Q. Did he do anything?

20 A. I don't recall.

21 Q. And when did you report this accident to the property manager?

22 A. I don't recall.

23 Q. Did you fill out a form or anything like that?

24 A. I don't believe so. I don't recall, though.

25 Q. Who specifically did you -- did you report it to, do you know his

1 or her name? 38

2 A. I don't. I don't recall.

3 Q. Aside from Jack, did anyone else approach you at the accident  
4 scene?

5 A. The lieutenant, the EMS; Jack was there. He didn't approach me.  
6 His wife was there too.

7 Q. And you said you went to North -- the EMTs took you to North Shore  
8 Hospital?

9 A. Northwell.

10 Q. North well?

11 A. Yeah.

12 Q. And it took about five /TPHOEUPBS /TKWET there?

13 A. An estimate would be 5, minutes or so something like that.

14 Q. Do you know what time you arrived at Northwell Hospital?

15 A. I don't recall the exact time.

16 Q. And did they take you to the emergency room or someplace else?

17 A. Emergency room.

18 Q. And how long were you in the emergency room before you met with a  
19 health care provider? 39

20 A. I don't recall.

21 Q. And when you first met with a health care provider, was it a  
22 doctor, a nurse, or someone else?

23 A. I don't recall.

24 Q. Did you see a doctor at the hospital?

25 A. Yes.

1 Q. Do you recall the name of the doctor?

2 A. I don't.

3 Q. What -- what did you tell the doctor? What did you complain of?

4 A. I complained of pain in my arm, in the elbow and shoulder, and  
5 that I had slipped on ice and broken my arm.

6 Q. And did the doctor examine you?

7 A. Yes.

8 Q. Did he diagnose you with any injuries or conditions?

9 A. They took x-rays, and then he told me that my arm was broken. The  
10 way he described it is it was, like, straight across, where it was  
11 like two water bottle openings trying to line up together, and they  
12 would manually have to put it back together as best as possible, but  
13 that I would need surgery to be able to fix the broken arm.

14 Q. And who took the x-rays?

15 A. I don't know.

16 Q. The x-rays were done at the hospital, though?

17 A. Yes.

18 Q. And you reviewed the x-rays with the doctor before you left?

19 A. I don't recall. I believe so.

20 Q. Approximately how long were you in the emergency room?

21 A. Approximately seven hours.

22 Q. Where did you go when you left the hospital?

23 A. Home.

24 Q. How did you get home?

25 A. I don't recall.

1 Q. You said you had x-rays at the hospital. Besides your right arm,  
2 did they x-ray any other parts of your body?

3 A. I don't recall.

4 Q. Did they do any other diagnostic testing like MRIs or CT scans?

5 A. No.

6 Q. Are you familiar with the doctor Ariel Goldman?

7 A. Yes.

8 Q. Okay. How are you familiar with him?

9 A. He did the surgery to put my arm back together.

10 Q. And who referred you to Dr. Goldman?

11 A. I found him online.

12 Q. Is he the doctor you treated with at the hospital?

13 A. I don't think so.

14 Q. When was your first visit with Dr. Goldman?

15 A. The week after the accident.

16 Q. So approximately February 10th, February 11th, around there?

17 A. I believe so.

18 Q. Where is Dr. Goldman's office located?

19 A. I believe it's Manhasset also.

20 Q. Approximately how far from your home at the time was Dr. Goldman's  
21 office?

22 A. About the same, five to ten minutes.

23 Q. And on your first visit there, who examined you?

24 A. Dr. Goldman.

25 Q. Did he diagnose you with any injuries or conditions?

1 A. He told me my arm was broken and I needed surgery.

2 Q. Can you describe that initial examination with Dr. Goldman?

3 A. What do you mean?

4 Q. Did he go over any X-rays with you, did he recommend any MRIs,  
5 anything like that?

6 A. Yes. He showed me the X-ray and showed me that my arm was broken  
7 and told me that I was going to need surgery to be able to put it  
8 back together.

9 Q. What surgery did he recommend that you needed?

10 A. I believe it was open reduction, where he would need to put in a  
11 plate and screws and screw it all back together because my arm was  
12 totally pulled apart, basically, so the bones were not together.

13 Q. Did he recommend anything other than surgery to treat your  
14 injuries?

15 A. There was nothing else that I could do.

16 Q. Did he, in fact, perform this surgery on your right arm?

17 A. He did.

18 Q. When did he perform that surgery?

19 A. I believe it was February 15.

20 Q. And where did he perform that surgery?

21 Q. And after the surgery, how long were you hospitalized?

22 A. I went home that day.

23 Q. Approximately how long did the surgery take?

24 A. He told me that the surgery was going to take approximately two  
25 hours. I believe it was two hours and change.

1 Q. And approximately how long were you in the hospital from start to  
2 finish for the surgery?

3 A. I don't recall exactly.

4 Q. It was all done in a day. You weren't -- you didn't stay  
5 overnight?

6 A. I did not stay overnight.

7 Q. Did the surgery alleviate the pain in your right arm?

8 A. No.

9 Q. Do you still have pain in your right arm?

10 A. I still have pain sitting here right now.

11 Q. Is it -- is it better or worse since the surgery?

12 A. The pain at the time of the surgery was a ten. I couldn't -- I was  
13 screaming every time I would get into a car and move, so I would say  
14 it's better since the surgery.

15 Q. Prior to the accident, did you have any -- any other injuries --  
16 any injuries to your right arm? 45

17 A. No.

18 Q. Did you have any surgeries before the -- before the accident?

19 A. No.

20 Q. Aside from the surgery to your right arm, have you had any other  
21 surgeries for any other parts of your body for injuries you alleged  
22 to have sustained in this accident?

23 A. Can you repeat the question?

24 Q. Sure. Aside from -- aside from the surgery to your right arm that  
25 you just described, have you had any other surgeries related to

1 injuries you claim to have sustained in this accident?

2 A. No. The doctors that I followed up with told me that I'd likely  
3 need a second surgery, and I'm very scared to do that.

4 Q. What kind of surgery did they say you need?

5 A. One told me I need arthroscopic surgery in the right shoulder; the  
6 others told me that I likely need other surgeries that are even more  
7 46 intensive, but I'm scared to do any of them.

8 Q. What doctor told you that you need right shoulder surgery?

9 A. I saw three doctors after Dr. Goldman, and all three of them told  
10 me that I likely need surgery.

11 Q. What are the names of the three doctors that you saw after the  
12 surgery?

13 A. I saw Dr. Tuchman \*\*\* SPELLING REQUESTED \*\*\*, I saw Dr. Gulotta,  
14 and I saw Dr. Dagley \*\*\* SPELLING REQUESTED \*\*\*.

15 Q. And who is that third doctor?

16 A. Dagley \*\*\* SPELLING REQUESTED \*\*\*.

17 Q. District attorneyingly. Do you know Dr. Item man's first name?

18 A. Don't.

19 Q. And who referred you to Dr. Tuchman?

20 A. I wasn't referred to him.

21 Q. How did you come to learn of him?

22 A. He works in the same office as 47 Dr. Mustafavi \*\*\* SPELLING  
23 REQUESTED \*\*\*.

24 Q. Who is Dr. Mustafavi \*\*\* SPELLING REQUESTED \*\*\*?

25 A. Mustafavi was the first doctor that I saw after the accident. How



- 1 did you learn about Dr. Mustafavi?
- 2 Q. Sand Dr. /T\*UPL /TK\*EL also an orthopedic doctor?
- 3 A. Yes.
- 4 Q. Do you know what he specializes in?
- 5 A. I believe in the shoulder.
- 6 Q. And this other doctor, is it Dr. Galato, you said?
- 7 A. Galato.
- 8 Q. Galato. Do you know his first name?
- 9 A. I don't.
- 10 Q. And how did you learn of Dr. Galato?
- 11 A. I had seen somebody who looked like they had shoulder surgery in
- 12 my daughter's doctor's office, and I asked him, you know, did you
- 13 have shoulder surgery? He said yes, and he told me the doctor's name.
- 14 Q. Where is /TK0\*L's office located?
- 15 A. In Manhattan HSS.
- 16 Q. How did you know he had shoulder surgery?
- 17 A. It looked like he could have been, and I think he had, like,
- 18 writing up on his shoulder.
- 19 Q. Writing on his shoulder?
- 20 A. It looked like there were marks on his shoulder.
- 21 Q. Oh. And when was your first treatment with, or first visit with,
- 22 Dr. Galato?
- 23 A. I don't recall.
- 24 Q. Do you know what kind of doctor Dr. Galato is?
- 25 A. He's one of the top doctors in HSS for shoulders.

1 Q. And have you had multiple visits with him, or was it just that one  
2 visit?

3 A. I don't recall.

4 Q. Dr. Tupman or Dr. Galato, did they recommend you undergo any MRIs  
5 on your shoulder or any other MRIs in any other part of your body?

6 A. Yes.

7 Q. Did you, in fact, undergo MRIs on your right shoulder?

8 A. I did MRIs for my shoulder and my elbow.

9 Q. When did you do the MRI on your shoulder?

10 A. After Dr. Tupman told me to.

11 Q. When was that?

12 A. I don't recall the exact date.

13 Q. Where did you get this MRI?

14 A. It was at Zwanger & Pesiri.

15 Q. Where is that? What was that?

16 A. Zwanger & Pesiri.

17 Q. Is that a doctor's name or the name of the . is that the name of the  
18 place where they did it?

19 A. That's the name of the place where they did it.

20 Q. Where is that located?

21 A. I don't recall.

22 Q. Is that where Dr. Tuckman told you to go or?

23 A. Don't . I don't recall.

24 Q. Where is that place located with respect, or where is it located?

25 A. I believe Plainview. I'm not sure.

1 Q. And that's on Long Island?

2 A. Yes.

3 Q. How far is it from your home?

4 A. I believe 20 minutes.

5 Q. All right. And how many times did you treat with Dr. Tuckman or

6 visit with Dr. Tuckman?

7 A. I don't recall exactly.

8 Q. De/SRAO\*UT MRI results with you?

9 A. Yes.

10 Q. Oh, I'm sorry, just back up a little bit. Did you get your elbow

11 MRI'd the same day that you got your .

12 A. No.

13 Q. When did you get your elbow MRI?

14 A. The afternoon.

15 Q. Was it at the same facility?

16 A. No.

17 Q. Where did you get your elbow MRI'd?

18 A. In the office, I believe, downstairs from where Dr. Tuckman's

19 office is.

20 Q. Somewhere Dr. Tuckman's office?

21 A. In Manhasset.

22 Q. Do you know the name of that facility or .

23 A. I don't recall.

24 Q. Aside from the . your elbow and your shoulder, did you have any

25 other body parts MRI'd since this . since this accident?

- 1 A. No.
- 2 Q. And you said · you mentioned a third doctor, Dr. Dagley, was it?
- 3 A. Yeah.
- 4 Q. How did you come to learn of Dr. Dagley?
- 5 A. I found him online.
- 6 Q. And where is his office located?
- 7 A. I don't recall.
- 8 Q. When did you first visit with him?
- 9 A. I don't recall the exact date.
- 10 Q. What kind of doctor is he?
- 11 A. He's also an orthopedic specialist.
- 12 Q. Specializing in the shoulder or some other body part?
- 13 A. I don't recall.
- 14 Q. Did any of these doctors diagnose you with any injury or condition
- 15 with respect to your right shoulder?
- 16 A. They told me that I have weakness and that it likely needs surgery
- 17 to be able to bring the pain down and to get the full range of motion
- 18 hopefully back.
- 19 Q. And did call four of these 53 doctors recommend you have surgery
- 20 on your right shoulder?
- 21 A. Yes.
- 22 Q. Did any of them recommend anything other than surgery?
- 23 A. Doctor Gurana told me I can take shots and try that.
- 24 Q. Did you take shots?
- 25 A. No.

1 Q. Did they recommend physical therapy?

2 A. I had done physical therapy after Dr. Goldman had told me to, and  
3 I did that for almost two years.

4 Q. When -- when did you start physical therapy?

5 A. I believe it was immediately after my surgery.

6 Q. So that was about 2021?

7 A. Yeah.

8 Q. Where did you -- where did you do physical therapy?

9 A. Starz.

10 Q. Where is that?

11 A. Manhattan.

12 Q. And how did you learn about that place?

13 A. My wife had gone to them.

14 Q. Okay. And what kind of -- what parts of your body did you work on  
15 at physical therapy?

16 A. My right arm, shoulder, and elbow.

17 Q. Did -- did the physical therapy help alleviate your pain at all?

18 A. They -- can you repeat the question?

19 Q. Sure. Did the physical therapy help alleviate your pain?

20 A. It helped me with my arm that wasn't working.

21 Q. Yes.

22 A. I was not able to move my arm at all when I walked in. I couldn't  
23 -- I could barely do anything. When I walked out, I was still able to  
24 at least pick up a bottle of water.

25 Q. So the physical therapy helped?

1 A. Yes.

2 Q. And not only with your shoulder, it can help with your arm as well  
3 and your elbow?

4 A. I couldn't move anything when I walked into the office.

5 Q. Okay. When was the last time you went for physical therapy?

6 A. I don't recall.

7 Q. Do you currently have any surgeries scheduled relative to the  
8 injuries you alleged to have sustained in the accident?

9 A. No, but it's been a consideration to go for the surgery because of  
10 the pain I'm in, and at times it's gotten really bad to the point  
11 where I feel like I have no choice but to go for surgery. I've just  
12 been putting it off because of the fact that I have two young kids,  
13 and I don't want to take the drop risk or have to go through another  
14 two years of recovery and end up in the same position without being  
15 able to help my family throughout the time.

16 Q. And that's the surgery on your right shoulder you're considering?

17 A. Yes.

18 Q. Are you considering any other surgeries?

19 A. No.

20 Q. Are you currently treating for any of the injuries that you  
21 alleged to have sustained in this accident?

22 A. No. Treating with a doctor, is that what you mean?

23 Q. So, are you currently treating with any doctor whatsoever for any  
24 injuries you alleged to have sustained in this accident?

25 A. No.

1 Q. Is there anything that you could do before the accident that you  
2 cannot do now?

3 A. Many things.

4 Q. Okay, like what, for instance?

5 A. Playing sports, being able to pick things up, being able to lift  
6 weights, being able to put furniture together, being able to change  
7 the light bulbs easily, being able to shave easily, being able to  
8 brush my teeth easily. There's pain involved in all the things that I  
9 have to do now on a daily basis. Being able to pick up my kids is  
10 painful. I have to hold my kids when I can with my left arm, which  
11 I'm not that comfortable with. At times, when I have to switch to the  
12 right arm for a quick second, it's very uncomfortable and does result  
13 in further pain.

14 Q. You mentioned you mentioned sports. Before the accident did you did  
15 you play any sports?

16 A. I would play sports. I would swim. I would do things to try to be  
17 active. I would go to the gym. A lot of these things I can't do  
18 anymore.

19 Q. What sports did you play?

20 A. I would play basketball. I would swim. I would play tennis.

21 Q. And you're not able to do any of those things anymore?

22 A. I'm able to do things with a large amount of pain, so it's not  
23 that, you know, my arm doesn't move at all. My arm, thankfully, does  
24 move, and I can do things, but it either causes a ton of pain at the  
25 time or thereafter also.

1 Q. Where did you·you said you would play tennis. Where would you play  
2 tennis before the accident?

3 A. I would play socially.

4 Q. And all these sports, you said, were you in any league, or did you  
5 just play with friends or socially?

6 A. No. I played with friends socially.

7 Q. Okay. And you're no longer able to -- are you able to play any  
8 sports now?

9 A. I can't play a game of basketball.

10 Q. Can you play tennis? (59)

11 A. No.

12 Q. Do you have any social media accounts?

13 A. I do.

14 Q. Do you have Facebook?

15 A. Yes.

16 Q. Do you have Instagram?

17 A. Yes.

18 Q. Do you have Twitter or X?

19 A. Yes.

20 Q. Do you have LinkedIn?

21 A. Yes.

22 Q. Do you have Snapchat?

23 A. I don't recall.

24 Q. Do you have TikTok?

25 A. No.



1 Q. Do you have any other social media accounts on any other platforms  
2 that I haven't mentioned?

3 A. I don't recall.

4 Q. Have you ever posted anything on social media regarding the  
5 accident?

6 A. I posted one picture.

7 Q. And which picture is that?

8 A. Picture of my arm wrapped up (60) after the accident.

9 Q. And who /THA0BG picture?

10 A. My wife.

11 Q. When did you post it?

12 A. Couple of days after the accident.

13 Q. Any other posts?

14 A. No.

15 Q. Any other -- any other posts about your injuries?

16 A. No.

17 Q. In the two years since the accident, or however long it's been  
18 since the accident, almost four years now, have you traveled outside  
19 of the United States?

20 A. No.

21 Q. Have you traveled outside of the State of New York?

22 A. Yes.

23 Q. Where have you gone?

24 A. I believe New York, Florida, and Hawaii. Sorry, New Jersey.

25 Q. Oh, okay. When did you go to Florida?

- 1 A. I don't recall. 61
- 2 Q. How many times have you gone to Florida?
- 3 A. I think once.
- 4 Q. Where did you go in Florida?
- 5 A. I don't recall.
- 6 Q. Was it for vacation, business?
- 7 A. I believe to go see family in Miami.
- 8 Q. And how did you get to Miami?
- 9 A. Via plane.
- 10 Q. And how did you get back?
- 11 A. Plane.
- 12 Q. How long were you there?
- 13 A. I don't recall.
- 14 Q. Where did -- where did you stay?
- 15 A. (Pause.) I stayed at a hotel, Little Blue Hotel.
- 16 Q. And that's in Miami?
- 17 A. Yeah.
- 18 Q. You said you went to Hawaii as well.
- 19 A. Yeah.
- 20 Q. When was that? 62
- 21 A. I don't recall.
- 22 Q. How long were you in Hawaii for?
- 23 A. A couple of days.
- 24 Q. And where -- where specifically did you go in Hawaii?
- 25 A. Maui.

- 1 Q. And was this for a vacation, business, or something else?
- 2 A. Vacation. (Spelling requested.)
- 3 Q. And where did you stay in Maui?
- 4 A. The hotel.
- 5 Q. What was the name of the hotel?
- 6 A. I don't recall.
- 7 Q. How did you get back from Hawaii?
- 8 A. Plane.
- 9 Q. And these flights to Florida and Hawaii, are these commercial
- 10 flights you took or private flights or something else?
- 11 A. Commercial.
- 12 Q. The treatments and the surgery that you described today, who paid
- 13 for it?
- 14 A. My insurance company, UnitedHealthcare.
- 15 Q. And you had insurance at the time of the accident?
- 16 A. Yes.
- 17 Q. And what kind of plan did you have?
- 18 A. I don't know.
- 19 Q. Did you obtain it through your employment or some other way?
- 20 A. Through my wife's employment.
- 21 Q. Oh okay. And where does your 64 wife work?
- 22 A. She works Hadasa.
- 23 Q. Hadasa?
- 24 A. Hadasa it's called.
- 25 Q. What kind of business or establishment is that?

1 A. It's a nonprofit that works with a hospital.

2 Q. Do you have any other outstanding medical bills as a result of  
3 your treatment?

4 A. I don't believe so.

5 Q. Are you aware of any liens that any health care provider or  
6 medical company has with respect to your treatment?

7 A. I don't know.

8 Q. I don't have anything further at this time.

9 A. Yeah, so I don't believe Florida was after the accident. It was  
10 California and Hawaii for my honeymoon, and I went to Canada once  
11 within the last year, I believe it was. (Objection: MR. TAIWO: Can  
12 I can we just take a quick break? MR. ANELLO: Sure. MR. TAIWO: Just a  
13 couple of minutes. I'm not going to go anywhere. (Whereupon, an  
14 off-the-record discussion was held.) MR. TAIWO: Over my objection,  
15 I'm going to let my client answer the question about legal funding,  
16 so yeah, and my I believe he also wants to correct his previous answers  
17 about where he went for vacation.)

18 Q. Where did you go in Canada?

19 A. Montreal.

20 Q. And how did you get there?

21 A. I took a plane, also.

22 Q. How long were you in Canada or in Montreal?

23 A. A couple of days, a few days.

24 Q. Was it for business, vacation, or something else?

25 A. Vacation.

1 Q. Okay. And you said you went to -- was it California to Hawaii one  
2 trip? (66)

3 A. Went to California, stayed there, I think, for, like, a couple of  
4 days, went to Hawaii, and then back to California to New York.

5 Q. Okay. And that was for your honeymoon?

6 A. Yes.

7 Q. And do you recall when exactly that was?

8 A. I believe the end of 2021.

9 Q. Or treatment funding?

10 A. No.

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